
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 16-0331
Mental Health Counselor License of	)	
	)	
JILL COLEMAN	)	COMBINED STATEMENT OF
License No. 001636	)	CHARGES, SETTLEMENT
Respondent.	)	AGREEMENT, AND FINAL ORDER

COME NOW the Iowa Board of Behavioral Science ("Board") and Jill Coleman ("Respondent"), 1827 Cornelia Drive, Clarion, IA 50525, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2016), and 645 IAC chapter 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154D, and 272C, and 645 IAC chapter 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with conviction of a crime related to the profession or occupation of the licensee or the conviction of any crime that would affect the licensee's ability to practice within the profession, pursuant to Iowa Code section 147.55(5) and 645 IAC 33.2(12).

B. FACTUAL CIRCUMSTANCES

2. Respondent holds Iowa license number 001636 to practice mental health counseling, which is currently active through September 30, 2018.

3. On December 18, 2015, Respondent was found guilty of Fraudulent Practice in the Third Degree and Tampering with Records in Wright County, Iowa. On February 12, 2016, Respondent was granted a deferred judgment for each count.

4. The criminal charges related to the practice of mental health counselor services.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

5. The Board has jurisdiction over the parties and the subject matter of these proceedings.

6. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

7. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

8. Respondent acknowledges that she has the right to be represented by counsel on this matter.

9. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

10. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

11. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

12. This Order shall not be binding as to any new complaints received by the Board.

13. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

14. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

15. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

16. Respondent's license shall be placed on **PROBATION** for a minimum period of two (2) years, subject to the following terms and conditions:

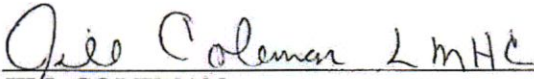
- a. Respondent shall complete two (2) years of monitored practice before being released from probation. Prior to beginning practice monitoring and within thirty (30) days of this Order, Respondent shall submit a proposed practice monitor and a practice monitoring plan to the Board for approval. The practice monitor shall be an Iowa licensed mental health counselor or marital and family therapist whose license is in good standing with no prior discipline and shall not be employed at the same practice as Respondent. Practice monitoring shall commence upon Board approval of the practice monitor and the practice monitoring plan. Respondent shall provide the practice monitor with a copy of this Order and documentation of the criminal case prior to initiating practice monitoring. Respondent shall meet in a face-to-face setting with the practice monitor every month during probation, at which time the practice monitor shall review the records and treatment of at least 10% of the clients who were seen by Respondent in the prior month. Respondent shall maintain a list of the clients that she sees every month, and the practice monitor shall have a system in place for making a random selection of client records for review. A minimum of twelve (12) meetings per year is required. Respondent's practice monitor shall submit quarterly reports to the Board

describing the clinical records reviewed, dates of meetings held with Respondent, a summary of the discussion held at each meeting, the practice monitor's recommendations for further mentoring and monitoring, if any, and any other information the practice monitor deems relevant for the Board's review. Said quarterly reports are due on January 5, April 5, July 5, and October 5 of each year during the probationary period. Respondent is responsible for all costs associated with practice monitoring and for ensuring the quarterly reports are timely submitted by her practice monitor.

- b. Respondent shall complete eight (8) hours of continuing education related to ethics and/or recordkeeping during the probationary period. These continuing education hours cannot be used as part of the continuing education hours Respondent is required to complete for license renewal. Respondent shall provide copies of all certificates of completion to the Board as proof of successful completion of this requirement. Respondent is responsible for all costs associated with obtaining the required continuing education.
- c. Respondent shall appear before the Board upon request for the purpose of reviewing her performance during Respondent's probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- d. Respondent shall obey all federal and state statutes and regulations governing the practice of mental health counseling.
- e. Respondent shall comply with all terms of the Deferred Judgment Order dated February 12, 2016.
- f. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- g. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Judy Manning, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Judith.Manning@idph.iowa.gov.
- h. Respondent may request early release from probation after one (1) year of monitoring. The Board retains sole discretion in deciding whether to grant or deny such a request.

17. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC chapters 13 and 33.

This Combined Statement of Charges, Settlement Agreement, and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 26 day of January, 2017.


JILL COLEMAN
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on the 2nd day of February, 2017.


Chairperson
Iowa Board of Behavioral Science

Copies to:

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